

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

17. DOMINIC OZENNE V. NICOLE OZENNE

25FL0396

Respondent filed a Request for Order (RFO) on February 10, 2026, seeking guideline temporary spousal support. Respondent concurrently filed an Income and Expense Declaration. Upon review of the court file, there is no Proof of Service showing Petitioner was properly served.

Petitioner filed a Responsive Declaration and Income and Expense Declaration on March 27, 2026. Petitioner does not assert a defect in service; therefore, the court finds any defect to have been waived. Petitioner requests guideline spousal support be calculated based solely on his main income and that the court not include his secondary employment, as he seeks to terminate that employment.

The court has read and considered the filings as outlined above. Utilizing the figures as set forth in the parties' Income and Expense Declarations, the court finds temporary guideline spousal support to be \$1,105 per month per the Alameda Formula, payable from Petitioner to Respondent. (see attached X-Spouse) The court orders Petitioner to pay Respondent \$1,105 per month as and for temporary guideline spousal support, effective March 1, 2026, and payable on the 1st of each month until further order of the court or termination by operation of law.

The court finds this results in an arrears balance of \$2,210 for the months of March and April inclusive. The court further finds based on Petitioner's declaration there have been voluntary support payments in the amount of \$900 per month since January 2026. The court finds the total amount of arrears owing to be \$410. The court orders Petitioner to pay Respondent \$410 as and for arrears on or before May 15, 2026.

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #17: THE COURT FINDS TEMPORARY GUIDELINE SPOUSAL SUPPORT TO BE \$1,105 PER MONTH PER THE ALAMEDA FORMULA, PAYABLE FROM PETITIONER TO RESPONDENT. (SEE ATTACHED X-SPOUSE) THE COURT ORDERS PETITIONER TO PAY RESPONDENT \$1,105 PER MONTH AS AND FOR TEMPORARY GUIDELINE SPOUSAL SUPPORT, EFFECTIVE MARCH 1, 2026, AND PAYABLE ON THE 1ST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

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THE COURT FINDS THIS RESULTS IN AN ARREARS BALANCE OF \$2,210 FOR THE MONTHS OF MARCH AND APRIL INCLUSIVE. THE COURT FURTHER FINDS BASED ON PETITIONER'S DECLARATION THERE HAVE BEEN VOLUNTARY SUPPORT PAYMENTS IN THE AMOUNT OF \$900 PER MONTH SINCE JANUARY 2026. THE COURT FINDS THE TOTAL AMOUNT OF ARREARS OWING TO BE \$410. THE COURT ORDERS PETITIONER TO PAY RESPONDENT \$410 AS AND FOR ARREARS ON OR BEFORE MAY 15, 2026.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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18. JEFFREY SHASKY V. KATHERINE SHASKY

PFL20210259

Petitioner filed a Request for Order (RFO) on February 4, 2026, seeking enforcement of the court's November 4, 2025 orders. Petitioner filed an amended RFO on February 6, 2026, seeking the same orders. There is no Proof of Service showing Respondent was properly served.

Respondent filed and served a Responsive Declaration on March 16, 2026. In her Responsive Declaration, Respondent asserts she was served on March 9, 2026, however, she does not state the manner in which she was served. The court finds March 9, 2026 service to be timely. While, this is a post-judgment request for modification, and as such, service must comply with Family Code section 215, the court finds any defect in service to have been waived by Respondent's filing of a Responsive Declaration which addresses the issues raised in the RFO. As such, the court finds good cause to proceed on the merits.

Petitioner asserts that Respondent has failed to comply with the court's orders for reunification services between Petitioner and the minors. Petitioner seek an order compelling the minors to attend reunification therapy and for Respondent to support such therapy. Petitioner further seeks court orders regarding payment for reunification therapy.

Respondent objects to the orders for reunification services and she asserts there is a no contact order preventing Petitioner for having contact with the minors.

The court has read and considered the filings as outlined above. The court has considered the orders from Sacramento County, which were ordered on July 17, 2025, which are modifiable by further court orders, and specifically state that issues relating to child custody and child visitation are to be addressed by El Dorado County. The court finds the current orders remain in the minor's best interest. The current orders remain in full force and effect. Respondent is to ensure the minor's full participation in all therapeutic services, including reunification therapy with Petitioner. The parties are to share in the cost of reunification therapy equally.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #18: THE COURT FINDS THE CURRENT ORDERS REMAIN IN THE MINOR'S BEST INTEREST. THE CURRENT ORDERS REMAIN IN FULL FORCE AND